

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Murdy	Team: Squad #06	CCRB Case #: 201409868	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 08/09/2014 12:20 PM	Location of Incident: 25th Precinct Hub Site	18 Mo. SOL 2/9/2016	Precinct: 28
Date/Time CV Reported Thu, 09/25/2014 12:58 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Thu, 09/25/2014 12:58 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jose Delrosario	02201	925174	NARCBMN
2. DT3 Milton Valerio	00692	943907	NARCBMN
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Joseph Pinder	00310	935517	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Milton Valerio	Discourtesy: Det. Milton Valerio spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . DT3 Jose Delrosario	Discourtesy: Det. Jose Delrosario spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . Officers	Force: Officers used physical force against § 87(2)(b)	C . Unfounded

Case Summary

On September 25, 2014, § 87(2)(b) filed this complaint by mail with the CCRB.

On August 9, 2014, § 87(2)(b) was arrested for § 87(2)(b). While inside the transport van, § 87(2)(b) complained to Detectives Milton Valerio and Jose Del Rosario that he could not breathe due to the lack of ventilation the van. The detectives told § 87(2)(b) to “shut the fuck up” (**Allegations A and B**).

Once at the 25th Precinct Hub Site, § 87(2)(b) refused to be fingerprinted and was taken to a holding cell at the rear of the building. For approximately 20 minutes, Det. Valerio and Det. Del Rosario periodically checked on § 87(2)(b). Each time, § 87(2)(b) asked them to go to the hospital and the officers told him to “shut the fuck up” (**Within Allegations A and B**).

After the 20 minutes, Det. Valerio and Det. Del Rosario entered the holding cell, closed the door, and told him that he was going to be transported to the hospital. § 87(2)(b) turned around and was handcuffed. Suddenly, Det. Valerio stepped to the side of § 87(2)(b) put his in front of § 87(2)(b) and tripped him. While he was being tripped, Det. Pinder and an unidentified male officer ran into the cell. All four officers proceeded to kick and stomp on § 87(2)(b) a total of 10 to 15 times over the course of approximately 30 minutes (**Allegation C**). Afterward, either Det. Valerio or Del Rosario told § 87(2)(b) “Now I bet you, you shut the fuck up” (**Within Allegations A and B**).

§ 87(2)(b) was taken to § 87(2)(b) § 87(2)(b). After being at the hospital until § 87(2)(b) § 87(2)(b) was taken to Manhattan Central Booking (encl. 4d).

Civil, Criminal, and Mediation Histories

§ 87(2)(b) is currently incarcerated at § 87(2)(b) in relation to the charges stemming from this incident. On March 10, 2015, an inquiry was filed with the NYC Comptroller’s Office to see if § 87(2)(b) has filed a civil suit. A response is still pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b) first CCRB complaint (encl. 2a). § 87(2)(g)
- Det. Valerio has seven prior CCRB allegations against him, none of which have been substantiated. He has one prior force allegation that was exonerated and a prior discourtesy allegation that was closed as complainant unavailable (encl. 1a).
- Det. Del Rosario has 18 prior CCRB allegations against him, one of which, for a retaliatory summons, was substantiated. All prior force and discourtesy allegations against Det. Del Rosario were closed as exonerated, unfounded, or unsubstantiated (encl. 1b-1c).

Findings and Recommendations

Allegation A – Discourtesy: Det. Milton Valerio spoke discourteously to § 87(2)(b)

Allegation B – Discourtesy: Det. Jose Del Rosario spoke discourteously to § 87(2)(b)

In his CCRB interview, § 87(2)(b) alleged that the detectives driving the prisoner van, Det. Valerio and Det. Del Rosario, told him to “shut the fuck up” when he complained that he could not breathe due to a lack of air ventilation in the van. Additionally, once inside a holding cell at the 25th Precinct Hub Site, the detectives again told § 87(2)(b) to “shut the fuck up” each time he asked to go to the hospital (encl. 4d).

During their respective CCRB interviews, both Det. Valerio and Det. Del Rosario denied using any profanity towards § 87(2)(b) at any point during their interactions with him. Det. Joseph Pinder was present at the Hub Site while § 87(2)(b) was there, but denied hearing Det. Del Rosario, Det. Valerio, or any other officer use any profanity towards § 87(2)(b) (encl. 5a-7f).

Letters were sent to possible witnesses who may have been present in the cells with § 87(2)(b) during his time at the Hub Site. However, no response has been received (encl. 14c-14g).

§ 87(2)(g)
Therefore, it is recommended that **Allegations A and B** be closed as *unsubstantiated*.

Allegation C – Force: Officers used physical force against § 87(2)(b)

In his CCRB interview, Det. Pinder confirmed that multiple different units use the 25th Precinct Hub Site at the same time to process narcotics arrests § 87(2)(g)

Additionally, all three detectives could not identify the potential fourth subject officer in this case (encl. 5a-7f). § 87(2)(g)

§ 87(2)(b) alleged that after 20 minutes of asking to go to the hospital, Det. Del Rosario and Det. Valerio entered the cell, closed the door, and told him he was going to be transported to the hospital. § 87(2)(b) turned around and was handcuffed. At that moment, Det. Valerio stepped to the side of § 87(2)(b) and swept his leg, causing him to fall down. Det. Pinder and an unidentified officer then ran into the cell and joined Det. Valerio and Det. Del Rosario in kicking and stomping on § 87(2)(b) approximately 10 to 15 times over the course of 30 minutes. § 87(2)(b) claimed that he sustained bruises to his arms, head injuries, bruised ribs, and a severe injury to his right eye § 87(2)(b) (encl. 4d).

Det. Valerio had no independent recollection of the incident, but after being told § 87(2)(b) was brought to § 87(2)(b) on the day of the incident, he stated it was likely that § 87(2)(b) was the prisoner referenced in his memo book. Det. Valerio denied that he would have used any physical force against § 87(2)(b) (encl. 5a-5f).

Det. Del Rosario and Det. Pinder both denied using any physical force against § 87(2)(b) (encl. 6a-7f). In fact, Det. Pinder stated he never had any direct interaction with § 87(2)(b) on the day of the incident. He may have only seen § 87(2)(b) in a holding cell as he walked past to use the bathroom at the hub site (encl. 7e).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) arrest entry in the hub site's command log stated he was arrested with an injury to his right eye sustained prior to any police interaction (encl. 9e). § 87(2)(b) mug shot corroborates this statement, as a minor bruise can be seen below his right eye. No other injuries to § 87(2)(b) head can be seen in the photo (encl. 8a).

In addition to the medical documentation, Det. Del Rosario stated that while at the hospital, § 87(2)(b) said he was going to make a complaint against him and Det. Valerio and told the detective, "let the games begin" (encl. 6e). This statement was corroborated by an audio recording provided by Det. Pinder following his CCRB interview. The recording, taken by Det. Valerio via his iPhone following § 87(2)(b) arrest, contained § 87(2)(b) telling officers that because they arrested him and not the hooker he was with, he was going to file a lawsuit against the officers, claiming that they beat him up and jumped him. The officers can be heard saying that they never touched him, but § 87(2)(b) tells them in response that he now "has to play the game" and file a lawsuit (encl. 7e).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegations C** be closed as ***unfounded***.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date